SECOND AMENDMENT TO SHOPPING CENTER LEASE

Cedar Grove Marketplace - Suite 100

THIS SECOND AMENDMENT TO SHOPPING CENTER LEASE (this "Amendment") is entered into effective as of June 30, 2024 (the "Effective Date"), by and between CEDAR GROVE MARKETPLACE LLC, a Texas limited liability company ("Landlord"), and FM RETAIL OPERATIONS LLC, a Delaware limited liability company ("Tenant").

RECITALS

A. Landlord and Tenant entered into that certain Shopping Center Lease dated September 15, 2017 with respect to approximately 34,000 rentable square feet known as Suite 100 at Cedar Grove Marketplace (the "Original Lease").

B. Landlord and Tenant entered into a First Amendment to Lease dated February 14, 2020 addressing curbside pickup areas, signage and certain operating matters (the "First Amendment"). The Original Lease, as amended by the First Amendment and this Amendment, is referred to as the "Lease."

C. Tenant has requested certain flexibility concerning its long-term occupancy commitment, and Landlord has agreed to grant a limited one-time termination right in consideration of the terms set forth below.

AGREEMENT

1. Defined Terms. Capitalized terms not otherwise defined in this Amendment have the meanings given in the Lease. If this Amendment conflicts with the Lease, this Amendment controls.

2. One-Time Termination Option. Provided that no material Event of Default by Tenant exists beyond applicable notice and cure periods on the date the Termination Notice is delivered or on the Early Termination Date, Tenant shall have a one-time right to terminate the Lease with respect to all, but not less than all, of the Premises effective at 11:59 p.m. on **December 31, 2029** (the "Early Termination Date").

3. Exercise Deadline. Tenant may exercise the Termination Option only by delivering an irrevocable written notice to Landlord (the "Termination Notice") received by Landlord no later than **December 31, 2028**. Time is of the essence. If Tenant fails to timely deliver the Termination Notice, the Termination Option automatically expires and is of no further force or effect.

4. Termination Payment. As a condition precedent to effectiveness of the Termination Option, Tenant shall pay Landlord a termination payment equal to the sum of: (a) the unamortized portion, as of the Early Termination Date, of Landlord-funded tenant improvement allowances and leasing commissions specifically attributable to the Premises after the Commencement Date; plus (b) six months of Base Rent at the rate otherwise payable for January 2030; less (c) any amount expressly credited by Landlord in writing. Fifty percent of the estimated termination payment shall accompany the Termination Notice and the balance, adjusted to actual, shall be paid no later than the Early Termination Date.

5. Effect of Termination. If Tenant timely and properly exercises the Termination Option and satisfies all conditions, the Term shall expire on the Early Termination Date as if that date were the stated Expiration Date. Tenant shall surrender the Premises in the condition required by the Lease. Obligations that expressly survive expiration, including indemnities and final reconciliations of Additional Rent, shall survive.

6. No Modification of Stated Expiration Date Unless Exercised. Unless and until Tenant timely exercises the Termination Option, the stated Expiration Date remains December 31, 2033. The existence of the Termination Option does not itself shorten the Term or reduce Rent otherwise payable.

7. Confidentiality. To the extent permitted by applicable law and subject to disclosures to lenders, investors, auditors, attorneys and prospective purchasers bound by customary confidentiality obligations, Landlord and Tenant shall use commercially reasonable efforts to keep the economic terms of Sections 2 through 4 confidential.

8. Estoppel and Financing Disclosure. Nothing in Section 7 prohibits Landlord from disclosing this Amendment, the Termination Option, or the economic effect thereof to any existing or prospective mortgage lender, purchaser, rating agency, servicer or other party conducting diligence with respect to the Shopping Center. Any estoppel certificate delivered after the Effective Date shall identify this Amendment if the form requests a list of lease amendments.

9. Ratification. Except as expressly modified by this Amendment, the Lease is ratified and confirmed and remains in full force and effect. Landlord and Tenant each acknowledge that, as of the Effective Date, it has no actual knowledge of an uncured default by the other party.

10. Counterparts; Electronic Signatures. This Amendment may be executed in counterparts, each of which is deemed an original and all of which together constitute one instrument. Signatures transmitted electronically or by PDF shall be effective as originals.

11. Authority. Each person executing this Amendment represents that he or she is authorized to bind the party on whose behalf the signature is made.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Second Amendment effective as of the Effective Date.

LANDLORD:
CEDAR GROVE MARKETPLACE LLC
By: Redwood Creek Real Estate Holdings LLC, its Manager

By: _____
Michael R. Dalton, Managing Member

TENANT:
FM RETAIL OPERATIONS LLC

By: _____
Laura K. Bennett, Vice President - Real Estate

ACKNOWLEDGMENT OF KEY DATES (for administrative convenience only)

Stated Lease Expiration: December 31, 2033
One-Time Early Termination Date: December 31, 2029
Termination Notice Deadline: December 31, 2028
Renewal Options: unchanged, if Lease has not terminated